

## 23VECV01359 23VECV01359

County: los-angeles

Division: Civil Law and Motion

Department: B

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### Tentative Ruling

Shirian v. Fox Capital, Case no. 23VECV01359

Hearing date September 29, 2026

### Defendant

Fox Capital's Motion for Leave to File Cross-Complaint

### Plaintiff

Shirian sued defendants Fox Capital, LLC, Rediger Investment Corporation and K. and S. Kamat (collectively "Kamat defendants") for negligence and premises liability, alleging injury when a portion of the mezzanine in a leased commercial unit collapsed. Plaintiff dismissed the Kamat defendants and Rediger on 9/9/26; Rediger's cross-complaint was dismissed the same day. Fox Capital, the sole remaining defendant, moves for leave to file a compulsory cross-complaint. Plaintiff opposes.

### Permission

to file a cross-complaint is discretionary. *Orient Handel v. United States Fid. & Guar. Co.* (1987) 192 Cal.App.3d 684, 701. A defendant may file a cross-complaint against a third party if the cause of action asserted arises out of the same transaction, occurrence or series of transactions or occurrences as set forth in the complaint. Code Civ. Proc. §428.10. A compulsory cross-complaint under section 426.30 concerns a "related cause of action" that a defendant has "against the plaintiff" at the time of answering the complaint. Code Civ. Proc. §426.30(a). Per section 428.50(c), a cross-complaint may be filed at any time "in the interests of justice." 2

#### Defendant

moves for leave to file a cross-complaint against plaintiff and nonparty JAJ Enterprises, Inc., asserting causes of action for express indemnity, equitable apportionment, equitable indemnity, declaratory relief and breach of contract. See Decl. Partida, exh. A. The proposed cross-complaint alleges plaintiff is the principal of JAJ Enterprises, the entity that leased the premises. Id. at para. 4, exh. A. Defendant's proposed cross-complaint alleges JAJ Enterprises agreed to indemnify and hold defendant harmless in the event of injury on the premises. Id.

#### Plaintiff

argues defendant delayed in bringing this motion. Plaintiff argues trial is 10/19/26, and being forced to defend against five previously unraised causes of action and an unnamed entity is prejudicial. Plaintiff argues this would stall a case pending for nearly 3.5 years, and defendant did not act in good faith, waiting 18 months after answering to seek to file a cross-complaint.

#### The

proposed cross-complaint is a compulsory one, containing causes of action related to the lease of the premises and plaintiff's injuries and claims. See Decl. Partida, exh. A; see also Code Civ. Proc. §426.30(a). Defendant's moving papers and supporting affidavit fail to explain the 18-month delay between filing the answer and this motion. The facts giving rise to the proposed cross-complaint were, or should have been, known to defendant from the inception of this lawsuit. Defendant's assertions that "litigation counsel" associated into this matter 8/20/26 and subsequently "in good faith immediately brought this motion to file a cross-complaint" fail to explain this delay, as defendant has been represented by counsel Mokhtarzadeh since the answer was filed almost a year and a half ago. See 3/17/25 Answer.

#### Defense

counsel must explain the delay in filing this compulsory cross-complaint. Absent a satisfactory explanation, the motion must be denied.